

STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH

IN RE:

Steven A. Blaisdell

Application Tracking No. LI-291238

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Docket No.

2018-117

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COME the State of Vermont, by and through Prosecuting Attorney Jennifer B. Colin, and Applicant Steven A. Blaisdell, who hereby stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health (the "Board") has authority to deny an applicant's license if it finds that the applicant has engaged in unprofessional conduct in any jurisdiction. 3 V.S.A. §129(a); 26 V.S.A. §3271; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation.

Stipulated Facts

Basis for Denial One: 26 V.S.A. §1582(a)(3) Engaging in conduct of a character likely to deceive, defraud, or harm the public.

2. An Application for licensure as a Licensed Clinical Mental Health Counselor ("LCMHC") was submitted by Steven A. Blaisdell on or about September 6, 2018 (the "Application"). The Application was complete on October 23, 2018.
3. In the Application, Steven A. Blaisdell ("Applicant") disclosed that he had been disciplined by the Texas State Board of Examiners of Professional Counselors ("Texas Board").
4. Applicant is a Licensed Professional Counselor ("LPC") in the State of Texas. Applicant received his license in February 2012 and the license expires in May 2019.
5. On August 30, 2018, Applicant signed a Notice of Violation (2018 Texas NOV) issued by the Texas Board, admitting a violation of professional ethical boundaries 22 TAC §§681.41(k) and (l)(1), which provide:

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(k) A licensee shall set and maintain professional boundaries; and
(l) Except as provided by this subchapter, non-therapeutic relationships with clients are prohibited. (1) A non-therapeutic relationship is any non-counseling activity initiated by either the licensee or client that results in a relationship unrelated to therapy.

6. The circumstances that gave rise to the violation, admitted by Applicant in the Texas NOV, are as follows:

From at least March of 2012 and August of 2012, the Applicant had a non-therapeutic relationship with client "ML" when he began exchanging text messages with client "ML". Client "ML" discontinued therapy with Applicant on or about April 1, 2012. Additionally, during or about June or July of 2012, until at least August of 2012, the Applicant continued a non-therapeutic relationship with client "ML" when the Applicant went to client "ML's" apartment to watch a movie with client "ML".

7. As part of the 2018 Texas NOV, Applicant accepted the following discipline from the Texas Board: Two-year probated suspension of his LPC license with the stipulation that he must continue personal therapy with Dr. Donald Jones with quarterly reports to the Texas Board regarding Applicant's fitness to practice. In the event that the Board-approved therapist, Dr. Jones, is no longer able to conduct therapy with Applicant, Applicant must submit the name of another therapist to the Texas Board for approval prior to receiving further therapy sessions.
8. The conduct cited in Paragraph 6 above demonstrates Applicant engaged in conduct of a character likely to harm the public when he engaged in an unethical relationship with a client/recent former client.

Basis for Denial Two: 3 V.S.A. §129a(a)(15) Failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.

9. Paragraphs 2 through 8 above are incorporated herein.
10. The conduct cited in Paragraph 6 above demonstrates that Applicant failed to exercise professional judgment in the performance of licensed activities when that judgment was necessary to avoid action repugnant to the obligations of the profession when he engaged in an unethical relationship with a client/recent former client.

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Basis for Denial Three: 3 V.S.A. §129a(b)(2) Failure to conform to the essential standards of acceptable and prevailing practice.

11. Paragraphs 2 through 8 above are incorporated herein.
12. The essential standards of practice for a licensed clinical mental health counselor require the counselor maintain professional boundaries with clients and former clients and refrain from engaging in personal, non-therapeutic relationships with clients and former clients to whom the counselor recently provided professional services.
13. Paragraph 6 above demonstrates that Applicant violated the essential standards of licensed clinical mental health counselor practice by having a personal, non-therapeutic relationship with a client/recent former client.

Understandings

14. Applicant admits the facts as outlined above are true and the Board may find that the Applicant engaged in unprofessional conduct.
15. Applicant admits that the facts above are true and that the conditions below are necessary to protect the public.
16. Applicant understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
17. Applicant specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced Applicant's rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.
18. Applicant has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
19. Applicant is not under the influence of any drugs or alcohol at the time of signature of this Stipulation and Consent Order.
20. Applicant voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
21. Applicant voluntarily waives the right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
22. Applicant agrees that the Order set forth below may be entered by the Board.

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ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board hereby **WARNS** Applicant's license when it is issued.
- B. The Board of Allied Mental Health hereby **CONDITIONS** Applicant's license **FOR A MINIMUM OF TWO (2) YEARS**. The conditions will be as follows:
 1. Issuance of License. Upon the commencement of these conditions, Applicant shall be issued a license labeled "conditioned."
 2. Length of Time of Conditions Imposed. The conditions shall remain in place until Applicant has completed all conditions ordered.
 3. Individual Counseling. Applicant shall continue to engage in individual counseling with Dr. Donald E. Jones, as approved by the Texas State Board of Examiners of Professional Counselors. Applicant shall comply with the treatment plan for a minimum of two years. Compliance with the treatment plan includes, but is not limited to, engaging in meetings with the treating professional at the frequency recommended in the treatment plan.

Within fourteen (14) days of the entry of this Stipulation and Consent Order, Applicant shall provide a copy of this Stipulation and Consent Order to Dr. Donald E. Jones and inform him of Applicant's conditional license status in Vermont and the accompanying conditions. Applicant's treating professional shall submit to the Board, on forms provided by the Board, acknowledgement of receipt of the Stipulation and Consent Order along with Applicant's current treatment plan.

Applicant shall authorize and require his treating professional to submit to the Board **quarterly** reports on forms issued by the Board. The initial treatment plan and all revisions to the treatment plan must be included in the reports to the Board, as well as reporting of Applicant's fitness to practice. Applicant shall authorize Applicant's treating professional to provide all information requested by the Board, either orally or in writing, at any time during the period this Consent Order is in effect.

In the event Dr. Donald E. Jones is no longer available to provide individual counseling to Applicant, Applicant must submit the name and credentials of another counselor to the Enforcement Case Manager for pre-approval prior to engaging in counseling with the new counselor. If approved, the new treating professional shall submit to the Board within ten (10) days of approval, on forms provided by the Board, acknowledgement of receipt of the Stipulation and Consent Order along with Applicant's current treatment plan.

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4. Completion of Conditioned License Period. After the conditioned license period, the Applicant may petition the Board to remove any and all conditions on her license. Applicant shall have the burden of proof to demonstrate successful completion of the above-stated conditions.

C. Notwithstanding any provision above, Applicant must continue to meet all requirements of the Board of Allied Mental Health for maintaining a license, license renewal and license reinstatement.

D. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

E. This Stipulation and Consent Order will remain part of Applicant's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

Dated: 11/13/18

STATE OF VERMONT
SECRETARY OF STATE

By:

Jennifer B. Colin
Prosecuting Attorney
(802)828-1219
Jennifer.Colin@sec.state.vt.us

APPLICANT

Dated: 11/15/18

By:

Steven A. Blaisdell M.D. L.P.C.

APPROVED AND SO ORDERED:

Dated: 11/15/18

Date of Entry: 11.15.18

VERMONT BOARD OF
ALLIED MENTAL HEALTH

By:

Jammy [Signature]
Chairperson

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